

STATE OF MICHIGAN IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,

Plaintiff,

v.

SHADY OAKS PARK MHP LLC, a dissolved Michigan limited liability company,
PARTRIDGE SECURITIES LLC, a foreign limited liability company doing business as Homes of America,
CT CORPORATION SYSTEM, a Delaware corporation acting as registered agent,
and all unnamed alter egos, successor entities, or agents-in-fact,
Defendants.

Case No.: 2024-000000000-CH

Hon. ____

**AMENDED VERIFIED COMPLAINT FOR INJUNCTIVE RELIEF, DECLARATORY JUDGMENT, DAMAGES, AND
CIVIL PENALTIES
WITH EMBEDDED EMERGENCY MOTIONS**

PRELIMINARY STATEMENT

NOW COMES Plaintiff, ANDREW J. PIGORS, in propria persona, and states:

This action arises from a continuing scheme of fraudulent, retaliatory, and unlawful conduct perpetrated by a dissolved LLC, Shady Oaks Park MHP LLC, in conjunction with managing agents and shell entities operating under the guise of Homes of America and Partridge Securities LLC. These Defendants have used improper filings, false billing, coercive tactics, and fraudulent concealment to force Plaintiff into unlawful contracts, strip him of lawful tenancy, and interfere with state-funded rent payments. Plaintiff seeks immediate declaratory and injunctive relief to halt any further eviction efforts, judicial recognition of the entity's lack of standing, voidance of judgments obtained through fraud, and monetary damages.

I. JURISDICTION AND VENUE

1. Venue is proper in the 14th Circuit Court for the County of Muskegon under MCL 600.1605.
 2. This Court has subject matter jurisdiction under MCL 600.605 (general equity jurisdiction), and MCR 3.310 (injunctive relief).
 3. Declaratory relief is authorized by MCR 2.605.
 4. Transfer from District Court is authorized under MCR 2.227(A), as the action involves complex equity matters.
 5. This Court also has jurisdiction to hear related federal claims under 42 USC §1983 and the Fair Housing Act.
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II. PARTIES

1. Plaintiff, ANDREW J. PIGORS, is a Michigan resident and tenant of Lot 17 within Shady Oaks Park, located at 1977 Whitehall Road, Muskegon, MI 49445.
 2. Defendant SHADY OAKS PARK MHP LLC is a Michigan LLC that was administratively dissolved by the Department of Licensing and Regulatory Affairs (LARA) on February 15, 2023. (Exhibit A)
 3. Defendant PARTRIDGE SECURITIES LLC is a Delaware entity operating under the alias Homes of America, managing the dissolved entity and collecting rents unlawfully.
 4. Defendant CT CORPORATION SYSTEM is the registered agent of record for Homes of America-related entities and has facilitated filings despite the legal dissolution of Shady Oaks Park MHP LLC.
 5. Plaintiff asserts alter ego liability against all named entities and agents involved in continuing business operations post-dissolution.
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III. FACTUAL ALLEGATIONS

1. Plaintiff moved into Shady Oaks in December 2023.
 2. He was initially charged \$395 per month rent, paid regularly through July 1, 2024, including payments from Karen Rettig, True North, and MDHHS. (Exhibit F)
 3. No rent ledger or receipt was issued until August 22, 2024, and it failed to account for all payments.
 4. In March 2024, Plaintiff was coerced into signing a lease under threat of eviction, at an increased rent of \$695. (Exhibit C)
 5. That lease was signed off-site at Cricklewood MHP LLC, a separate entity.
 6. Despite the entity's dissolution on February 15, 2023, Defendants continued rent collection and litigation under the Shady Oaks name.
 7. In February 2025, rent was unilaterally raised to \$720, and illegal charges were added for water and sewer during a known EGLE-reported sewage violation. (Exhibit E)
 8. On May 20, 2025, without notice and while Plaintiff's minor child was present, Defendants shut off Plaintiff's water. (Exhibit D)
 9. These retaliatory acts followed Plaintiff's complaints to state agencies and refusal to accept the unlawful terms.
 10. Defendants initiated eviction proceedings under the dissolved entity's name in 60th District Court (Case No. 2025-25061626LT-LT), misleading the court and opposing party.
 11. Plaintiff suffered job loss, public health risk, and custody interference as a result.
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IV. CAUSES OF ACTION

COUNT I: Operating While Dissolved

(Against Shady Oaks Park MHP LLC, Partridge Securities LLC) 22. Defendants violated MCL 450.1832(1)(b) by transacting business, filing lawsuits, and collecting rent post-dissolution. 23. Such actions are void, constitute fraud upon the court, and must be enjoined.

COUNT II: Fraudulent Inducement and Duress

(Against Partridge Securities LLC, Cricklewood MHP LLC) 24. The March 2024 lease was executed under threat of eviction and false representations. 25. This violates Restatement (Second) of Contracts §§175–176 and MCL 600.5813.

COUNT III: Retaliatory Eviction and Rent Increase

(Against all Defendants) 26. Plaintiff's protected activity triggered rent hikes, water shutoff, and court filings. 27. This violates MCL 600.5775(2)-(3).

COUNT IV: Breach of Covenant of Habitability

(Against Shady Oaks / Partridge / Homes of America) 28. Defendants failed to maintain essential services. 29. This violates MCL 554.139(1)(a)-(b) and EGLE safety rules.

COUNT V: Unjust Enrichment and Deceptive Billing 30. Plaintiff paid for utilities and rent beyond lawful rates. 31. Defendants retained payments without legal basis.

COUNT VI: Civil Conspiracy 32. Defendants acted jointly in furtherance of unlawful business via dissolved or misrepresented entities. 33. This violates MCL 750.157a; MCL 600.2954.

COUNT VII: Michigan Consumer Protection Act Violations 34. Defendants misrepresented rent obligations and utility charges. 35. This violates MCL 445.903(1)(s), (cc), and (dd).

COUNT VIII: Retaliatory Housing Discrimination 36. Defendants targeted Plaintiff in retaliation for asserting legal rights. 37. This violates the Fair Housing Act, 42 U.S.C. §3601 et seq.

COUNT IX: Federal Civil Rights Violations (Property) 38. Defendants deprived Plaintiff of property without due process. 39. This constitutes a violation under 42 U.S.C. §1983.

COUNT X: Entity Registration and Agent Misrepresentation 40. Defendants failed to disclose accurate legal standing in public filings. 41. This violates MCL 450.1241 and MCL 450.4207.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests this Court grant the following:

A. **Declaratory Judgment** declaring Shady Oaks dissolved and legally incapable of suit; B. **Injunctive Relief** barring Defendants from further filings or eviction attempts using dissolved entities; C. **Transfer of 60th District Case** to this Circuit under MCR 2.227(A); D. **Voidance of all post-dissolution filings** and judgments under MCR 2.612(C); E. **Damages**, including: - Actual: Overpaid rent and utility fees - Treble: Under MCL 445.911 and MCL 600.5775 - Civil penalties: \$500/day from May 20, 2025 (water shutoff) F. **Equitable Relief** nullifying the March 2024 lease and requiring refunds; G. **Ex Parte Emergency Relief** under MCR 3.310 to stay any active eviction; H. **Referral to HUD, EGLE, and the Attorney General** for parallel enforcement; I. **Attorney fees and court costs**; J. Any other relief this Court deems just.

VERIFICATION

I declare under penalty of perjury that the foregoing is true to the best of my knowledge, information, and belief.

Dated: _____

Respectfully submitted,

ANDREW J. PIGORS, Plaintiff In Pro Per

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[NOTARY BLOCK – TO BE COMPLETED PRIOR TO FILING]